Gmail **Stephen Cooke <stephencooke.c@gmail.com>**

Revised: Revised: Urgent Response Required: Defense Strategy and Outstanding Legal Matters

1 message

Stephen Cooke <stephencooke.c@gmail.com> Fri, Mar 22, 2024 at 9:35 PM
To: Jacqueline Turner <j.turner@claritylawyers.com.au>, Samantha Miller <samantha@claritylawyers.com.au>

(please disregard the previous, previous email.)

Dear Jacqueline and Samantha,

I hope this email finds you both well. I am writing to address several critical points that need to be effectively dealt with in our upcoming court proceedings regarding Heather's claims against me. These points are of utmost importance, and I need your confirmation that they will be the focus of our defense strategy.

I've dedicated significant effort to compiling comprehensive data and evidence for the four points in question. Yet, it appears that our defense may not be effectively conveying the depth of this preparation, as only the unfounded **drinking** allegations seem to be adequately challenged. It's crucial that we thoroughly address these issues to fortify our defense.

1. **Allegations of Lavish Spending:**

   Despite providing comprehensive evidence, it appears that the message about the lack of extravagant spending on my part is not being adequately conveyed. The credit card statements clearly demonstrate that all expenditures were for household necessities, family expenses, and purchases for Heather. There is no evidence of lavish spending on myself, as confirmed by the modest nature of my personal expenses such as me buying my clothes at Costco. **Delenay's letter states $30,000 on a server, what we have instead is me stating im prepared instead to absorb 13k of family I.T. expenses.** What remains is a server with Heather's name on the invoice and a Ring Security System supported by a sophisticated network, validated by a text message from Heather "those cameras are a Godsend " **All I.T. purchases were made for the family over a number of years! Heather spent 17k on jewelry for herself by way of comparison!**

2. **Accusations of Alcoholism:**

   It appears we are well-equipped to address Heather's accusations of excessive drinking. Any alcohol consumption on my part was moderate and **most often** shared with her. To confidently challenge this claim, I voluntarily underwent a hair follicle test, yielding the lowest possible alcohol consumption rating. Moreover, documented text messages illustrate Heather's ongoing requests for alcohol as late as Oct/ November, even after she purportedly ceased drinking in July 2023.

3. **Assertion of Unfitness due to ADHD:**

   The diagnosis and management of my ADHD have been thoroughly documented, along with **specialist opinion affirming** that it does not impede my ability to parent effectively. However, it appears that this vital information may not be receiving the attention it deserves in our defense strategy. Why haven't we dived into the Subpoena material from Dr. Moisey in this regard? **We need to emphasize as confirmed by Google Timeline that I made all of my children's appointments on time with the exception of Tennis as it was a physical impossibility as the end and start times of school and tennis overlap.** There is/was no "Time Blindness"in this regard.

4. **Claim of Feeling Unsafe:**

   Despite my consistent efforts to refute the claim that Heather moved out due to feeling unsafe, it seems that this rebuttal is not being effectively conveyed. It is essential to highlight the lack of evidence supporting this claim and to emphasize my repeated attempts to address marital issues through seeking help. This claim is either a simple lie or the manifestation of mental illness. **I never, ever threatened Heather! period.**

In addition to addressing these allegations, I am concerned about several outstanding matters:

- Clarification on the outstanding attachments on our house. **It is my understanding you have subpoenaed the bank for this information and have had no update as to what the bank has communicated. How can we proceed to court without knowing what is attached to the house?**
- Investigation into the purpose of the investment loan **in the amount of $231,647** initiated by Heather **and what was done with the proceeds? Westpac will not discuss as they say I am not involved with this loan.**
- Measures to ensure accurate asset disclosure by the opposing party, including questioning regarding significant financial transactions **including transfer of funds to family members over the past 3 years.**
- Inquiry into the allocation of rental payments totaling nearly $500,000 on the Brisbane property over the past decade.
- **Explanation regarding limitations on sharing pertinent case information with me such as subpoenas, as relayed by third parties.**
- **$383,137.77 - Funds removed by Heather on November 17th, are we requesting at the hearing Heather return this money to a trust account so that they are available for asset distribution? It would be unjust to lock up my praemium investment without these funds being returned and the account ending in 2919 loan of $231,647 needs to also be acknowledged and made known I was unaware.**

Jacqueline and Samantha, it's imperative that Rebecca, as our barrister, is fully prepared to articulate these points and vigorously defend our case in court. Please ensure that Rebecca receives this information promptly and is briefed accordingly.

I seek prompt responses and actions on these issues, as time is of the essence in preparing our defense. Your thorough attention to these matters is crucial to achieving a favorable outcome in our case.

Thank you for your immediate attention to this urgent matter.

Sincerely,

Stephen

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